

Table of Contents

State/Territory Name: Vermont

State Plan Amendment (SPA) #: 22-0002

This file contains the following documents in the order listed:

- 1) Approval Letter
- 2) CMS 179 Form/Summary Form (with 179-like data)
- 3) Approved SPA Pages

VT - Submission Package - VT2022MS0004O - (VT-22-0002) - Eligibility

- Summary
- Reviewable Units
- Versions
- Correspondence Log
- Compare Doc Change Report
- Analyst Notes
- Review Assessment Report
- Approval Letter
- Transaction Logs
- News
- Related Actions

CMS-10434 OMB 0938-1188

Package Information

Package ID	VT2022MS0004O	Submission Type	Official
Program Name	N/A	State	VT
SPA ID	VT-22-0002	Region	Boston, MA
Version Number	4	Package Status	Approved
Submitted By	Danielle Fuoco	Submission Date	9/30/2022
Package Disposition		Approval Date	12/20/2022 9:42 AM EST
Priority Code	P2		
Lead Division	DMEP		

DEPARTMENT OF HEALTH & HUMAN SERVICES
Centers for Medicare & Medicaid Services
Medicaid and CHIP Operations Group
601 E. 12th Street
Room 355
Kansas City, MO 64106



Center for Medicaid & CHIP Services

December 20, 2022

Adaline Strumolo
Deputy Commissioner
Department of Vermont Health Access
NOB 1 South
280 State Drive
Waterbury, VT 05671-1010

Re: Approval of State Plan Amendment VT-22-0002

Dear Adaline Strumolo,

On September 30, 2022, the Centers for Medicare and Medicaid Services (CMS) received Vermont State Plan Amendment (SPA) VT-22-0002, which proposed to disregard two sources of income/resources: 1) any refundable credit against taxes made pursuant to Vermont's child tax credit or pursuant to a similar tax credit enacted by the State and intended by legislation to not be considered as countable income or resources for benefit programs; and 2) any wages that are made pursuant to Vermont's Premium Pay for Workforce Recruitment and Retention Program or a similar workforce recruitment and retention program enacted in Vermont and intended by the legislature to not be considered as countable income or resources in determining eligibility for benefit programs.

We approve Vermont State Plan Amendment (SPA) VT-22-0002 with an effective date of July 01, 2022.

If you have any questions regarding this amendment, please contact Gilson DaSilva at gilson.dasilva@cms.hhs.gov

Sincerely,
Sophia Hinojosa
Acting Director, Division of Program
Operations
Center for Medicaid & CHIP Services

Submission - Summary

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS00040 | VT-22-0002

Package Header

Package ID VT2022MS00040
Submission Type Official
Approval Date 12/20/2022
Superseded SPA ID N/A

SPA ID VT-22-0002
Initial Submission Date 9/30/2022
Effective Date N/A

State Information

State/Territory Name: Vermont

Medicaid Agency Name: Agency of Human Services

Submission Component

☒ State Plan Amendment

☒ Medicaid

☐ CHIP

Submission - Summary

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS00040 | VT-22-0002

Package Header

Package ID VT2022MS00040
Submission Type Official
Approval Date 12/20/2022
Superseded SPA ID N/A

SPA ID VT-22-0002
Initial Submission Date 9/30/2022
Effective Date N/A

SPA ID and Effective Date

SPA ID VT-22-0002

Reviewable Unit	Proposed Effective Date	Superseded SPA ID
Eligibility Determinations of Individuals Age 65 or Older or Who Have Blindness or a Disability	7/1/2022	VT-21-0002
Medically Needy Income Level	7/1/2022	VT-91-12; VT-02-06
Handling of Excess Income (Spenddown)	7/1/2022	VT-91-12
Medically Needy Resource Level	7/1/2022	VT-91-12; VT-10-0004
Mandatory Eligibility Groups	7/1/2022	VT-21-0002
SSI Beneficiaries	7/1/2022	VT-92-10; VT-93-9
Closed Eligibility Groups	7/1/2022	VT-91-12
Individuals Deemed To Be Receiving SSI	7/1/2022	VT-92-1; VT-91-12
Working Individuals under 1619(b)	7/1/2022	VT-91-12
Qualified Medicare Beneficiaries	7/1/2022	VT-91-12
Qualified Disabled and Working Individuals	7/1/2022	VT-10-004
Specified Low Income Medicare Beneficiaries	7/1/2022	VT-91-12
Qualifying Individuals	7/1/2022	VT-91-12
Optional Eligibility Groups	7/1/2022	VT-21-0002
Individuals Eligible for but Not Receiving Cash Assistance	7/1/2022	VT-91-12
Individuals Eligible for Cash Except for Institutionalization	7/1/2022	VT-91-12
Individuals Receiving Home and Community-Based Waiver Services under Institutional Rules	7/1/2022	N/A removed from package
Individuals in Institutions Eligible under a Special Income Level	7/1/2022	VT-91-12
Individuals Receiving Hospice	7/1/2022	VT-91-12
Work Incentives	7/1/2022	VT-91-12
Protected Medically Needy Individuals Who Were Eligible in 1973	7/1/2022	VT-91-12
Medically Needy Populations Based on Age, Blindness or Disability	7/1/2022	VT-91-12

Page Number of the Superseded Plan Section or Attachment (If Applicable):

Vermont has a long list of superseded SPA IDs as well as fully and partially superseded pages for each Reviewable Unit that exceeds the character limit for these text boxes. Please see attached excel file for full crosswalk to superseded SPA IDs.

Submission - Summary

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	N/A
Superseded SPA ID	N/A		

Executive Summary

Summary Description Including Goals and Objectives This purpose of this SPA is to newly disregard two sources of income/resources: 1) any refundable credit against taxes made pursuant to Vermont's child tax credit or pursuant to a similar tax credit enacted by the State and intended by legislation to not be considered as countable income or resources for benefit programs, and 2) any wages that are made pursuant to Vermont's Premium Pay for Workforce Recruitment and Retention Program or a similar workforce recruitment and retention program enacted in Vermont and intended by the legislature to not be considered as countable income or resources in determining eligibility for benefit programs. These disregards are for purposes of calculating financial eligibility for Medicaid under the eligibility groups that are included in this SPA package.

This package also includes some eligibility groups for which the disregards above are not applicable, but the State wishes to migrate into the MACPro system.

Federal Budget Impact and Statute/Regulation Citation

Federal Budget Impact

	Federal Fiscal Year	Amount
First	2022	\$0
Second	2023	\$0

Federal Statute / Regulation Citation

42 CFR §430.12(c)(1)(ii)

Supporting documentation of budget impact is uploaded (optional).

Name	Date Created	
VT-22-0002-Crosswalk-Superseded-SPA-IDs	12/14/2022 1:22 PM EST	

Submission - Summary

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

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Superseded SPA ID	N/A		

Governor's Office Review

- ☒ No comment
- ☐ Comments received
- ☐ No response within 45 days
- ☐ Other

Submission - Public Comment

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

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Indicate whether public comment was solicited with respect to this submission.

- ☒ Public notice was not federally required and comment was not solicited
- ☐ Public notice was not federally required, but comment was solicited
- ☐ Public notice was federally required and comment was solicited

Submission - Tribal Input

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	N/A
Superseded SPA ID	N/A		

One or more Indian Health Programs or Urban Indian Organizations furnish health care services in this state

- ☐ Yes
- ☒ No

Medicaid State Plan Eligibility

Income/Resource Methodologies

Eligibility Determinations of Individuals Age 65 or Older or Who Have Blindness or a Disability

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-21-0002		
	System-Derived		

A. Eligibility Determinations of Individuals Who Are Age 65 or Older or Who Have Blindness or a Disability

Eligibility determinations of individuals who are age 65 or older or who have blindness or a disability are based on one of the following:

☒ 1. SSA Eligibility Determination State (1634 State)

The state has an agreement under section 1634 of the Social Security Act for the Social Security Administration to determine Medicaid eligibility of SSI beneficiaries. For all other individuals who seek Medicaid eligibility on the basis of being age 65 or older or having blindness or a disability, the state requires a separate Medicaid application and determines financial eligibility based on SSI income and resource methodologies.

☐ 2. State Eligibility Determination (SSI Criteria State)

The state requires all individuals who seek Medicaid eligibility on the basis of being age 65 or older or having blindness or a disability, including SSI beneficiaries, to file a separate Medicaid application, and determines financial eligibility based on SSI income and resource methodologies.

☐ 3. State Eligibility Determination (209(b) State)

The state requires all individuals who seek Medicaid eligibility on the basis of being age 65 or older or having blindness or a disability, including SSI beneficiaries, to file a separate Medicaid application, and determines financial eligibility using income and resource methodologies more restrictive than SSI.

B. Additional information (optional)

Medicaid State Plan Eligibility

Income/Resource Standards

Medically Needy Income Level

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID VT2022MS0004O
Submission Type Official
Approval Date 12/20/2022
Superseded SPA ID VT-91-12; VT-02-06
User-Entered

SPA ID VT-22-0002
Initial Submission Date 9/30/2022
Effective Date 7/1/2022

A. Income Level Used

1. The state employs a single income level for the medically needy.
2. The income level varies based on differences between shelter costs in urban and rural areas.

☒ Yes
☐ No

The areas in which the level varies are:

Name of area:	Description:
Chittenden County	Individuals who reside in Chittenden County, Vermont.
Outside Chittenden County	Individuals who reside in Vermont outside of Chittenden County.

3. The level used is:

Chittenden County

Household size	Standard
2	\$741.00
3	\$875.00
4	\$991.00
5	\$1108.00
6	\$1183.00
7	\$1316.00
8	\$1433.00
9	\$1533.00
10	\$1641.00
11	\$1741.00
1	\$741.00

The state uses an additional incremental amount for larger household sizes.

☒ Yes
☐ No

Incremental Amount:
\$100.00

The dollar amounts increase automatically each year

☐ Yes
☒ No

Outside Chittenden County

The state uses an additional incremental amount for larger household sizes.

☒ Yes

Household size	Standard
1	\$683.00
2	\$683.00
3	\$825.00
4	\$933.00
5	\$1050.00
6	\$1125.00
7	\$1258.00
8	\$1375.00
9	\$1483.00
10	\$1583.00
11	\$1683.00

☐ No

Incremental Amount:

\$100.00

The dollar amounts increase automatically each year

☐ Yes

☒ No

Medically Needy Income Level

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS00040 | VT-22-0002

Package Header

Package ID	VT2022MS00040	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12; VT-02-06		
	User-Entered		

B. Basis for Income Level

1. Minimum Income Level

The minimum income level for this eligibility group is the lower of the state's July 1996 AFDC payment standard or the state's income standard for the Parents and Other Caretaker Relatives eligibility group.

2. Maximum Income Level

The maximum income level for this eligibility group is 133 1/3 percent of the higher of the state's 1996 AFDC payment standard or the state's income standard for the Parents and Other Caretaker Relatives eligibility group.

Medically Needy Income Level

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12; VT-02-06		
	User-Entered		

C. Additional Information (optional)

Medicaid State Plan Eligibility

Income/Resource Standards

Handling of Excess Income (Spenddown)

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS00040 | VT-22-0002

Package Header

Package ID	VT2022MS00040	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
User-Entered			

If countable income exceeds the income standard, the state must deduct from income medical expenses incurred by the individual or family or financially responsible relatives that are not subject to payment by a third party, in accordance with 42 CFR 435.831 and 42 CFR 435.121.

A. Budget Periods

Income in excess of the appropriate income standard is considered available for payment of medical or remedial care expenses in budget periods that do not exceed six months.

1. In determining income eligibility, countable income is reduced by the amount of incurred medical or remedial care expenses during the budget period specified below:

☐ a. One budget period of:

☒ b. More than one budget period, as described below:

☐ i. Community budget period

Length of budget period:

☒ (1) 6 months

☐ (2) 5 months

☐ (3) 4 months

☐ (4) 3 months

☐ (5) 2 months

☐ (6) 1 month

☐ ii. Institutional budget period

Length of budget period:

☐ (1) 6 months

☐ (2) 5 months

☐ (3) 4 months

☐ (4) 3 months

☐ (5) 2 months

☒ (6) 1 month

☐ iii. Other budget period

2. The state includes part or all of the retroactive period in the budget period.

☐ Yes

☒ No

Handling of Excess Income (Spenddown)

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS00040 | VT-22-0002

Package Header

Package ID	VT2022MS00040	SPA ID	VT-22-0002
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Superseded SPA ID	VT-91-12		
	User-Entered		

B. Types of Eligible Expenses

1. In determining incurred expenses to be deducted from income, the state includes:

- Medicare, Medicaid, and other health insurance premiums and enrollment fees.
- Cost sharing, including copayments, coinsurance, and deductibles, imposed by Medicare, Medicaid or other health insurance.
- Expenses for necessary medical and remedial services recognized by state law but not included in the state plan.
- Expenses for necessary medical and remedial services included in the state plan, including those that exceed limitations on the amount, duration, and scope of services.

2. The state also includes medical institutional expenses projected to the end of the budget period at the Medicaid reimbursement rate.

☒ Yes

☐ No

3. Incurred expenses subject to payment by a third party are not deducted unless the third party is a public program (other than Medicaid) of a state and the program is financed by the state.

Handling of Excess Income (Spenddown)

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

C. Timeframe of Deduction of Expenses

In determining incurred expenses to be deducted from income, the state deducts:

1. For retroactive budget periods and a budget period that includes both retroactive and prospective budget, the state deducts:

- Eligible expenses incurred during the budget period, whether paid or unpaid.
- Payments made during the budget period on eligible expenses incurred at any time prior to the budget period, if not previously deducted in establishing eligibility.
- Unpaid eligible expenses, which have not been deducted previously in establishing eligibility, and were incurred:
 - ☒ i. At any time prior to the budget period.
 - ☐ ii. Prior to the third month before the month of application, but no earlier than:
 - ☐ iii. No earlier than the third month before the month of application.

2. For prospective budget period(s), the state deducts:

- Eligible expenses incurred during the budget period, whether paid or unpaid.
- Payments made during the budget period on eligible expenses incurred at any time prior to the budget period, if not previously deducted in establishing eligibility.
- Unpaid eligible expenses that are carried over from the prior budget period and have not been deducted previously in establishing eligibility.

Handling of Excess Income (Spenddown)

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS00040 | VT-22-0002

Package Header

Package ID	VT2022MS00040	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

D. Order of Deduction of Expenses

Incurred medical or remedial care expenses are deducted in the following order:

- ☒ 1. By the type of service, in the following order:
 - a. Premiums, deductibles, coinsurance and co-payments.
 - b. Expenses for necessary medical or remedial care services that are recognized under state law but not included in the State Plan.
 - c. Expenses for necessary medical or remedial care services that are included in the state Plan that exceed agency limitations on amount, duration, or scope of services.
 - d. Expenses for necessary medical or remedial care services that are included in the state Plan that are within the agency limitations on amount, duration, or scope of services.
- ☐ 2. In chronological order by the date of the service, or the date cost sharing payments are due.
- ☐ 3. In chronological order by the date the bill is submitted to the state by the individual.

Handling of Excess Income (Spenddown)

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

E. Reasonable Limitations

The state sets reasonable limits on the amount to be deducted for expenses.

☐ Yes

☒ No

Handling of Excess Income (Spenddown)

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID VT2022MS0004O

Submission Type Official

Approval Date 12/20/2022

Superseded SPA ID VT-91-12

User-Entered

SPA ID VT-22-0002

Initial Submission Date 9/30/2022

Effective Date 7/1/2022

F. Spenddown Payments Made by Individuals

The state permits individuals to pay-in their spenddown liability.

☐ Yes

☒ No

Handling of Excess Income (Spenddown)

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

G. Additional Information (optional)

Medicaid State Plan Eligibility

Income/Resource Standards

Medically Needy Resource Level

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
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Superseded SPA ID	VT-91-12; VT-10-0004		
	User-Entered		

A. Medically Needy Resource Level Structure

1. The state employs a single resource level for the medically needy.
2. The resource level is equal to or higher than the lowest resource standard used under the most closely related cash assistance program.

Medically Needy Resource Level

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS00040 | VT-22-0002

Package Header

Package ID	VT2022MS00040	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12; VT-10-0004		
	User-Entered		

B. Resource Level Used

The level used is:

Household size	Standard
1	\$2000.00
2	\$3000.00
3	\$3150.00
4	\$3300.00
5	\$3450.00
6	\$3600.00
7	\$3750.00
8	\$3900.00
9	\$4050.00
10	\$4200.00

The state uses an additional incremental amount for larger household sizes.

- ☒ Yes
- ☐ No

Incremental Amount:
\$150.00

Medically Needy Resource Level

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

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Superseded SPA ID	VT-91-12; VT-10-0004		
	User-Entered		

C. Additional Information (optional)

Medicaid State Plan Eligibility

Mandatory Eligibility Groups

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS00040 | VT-22-0002

Package Header

Package ID	VT2022MS00040	SPA ID	VT-22-0002
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	System-Derived		

Mandatory Coverage

A. The state provides Medicaid to mandatory groups of individuals. The mandatory groups covered are:

Families and Adults

Eligibility Group Name		Covered In State Plan	Include RU In Package ?	Included in Another Submission Package	Source Type ?
Infants and Children under Age 19		☐	☐	☐	APPROVED
Parents and Other Caretaker Relatives		☐	☐	☐	APPROVED
Pregnant Women		☐	☐	☒	APPROVED
Deemed Newborns		☐	☐	☐	NEW
Children with Title IV-E Adoption Assistance, Foster Care or Guardianship Care		☐	☐	☐	NEW
Former Foster Care Children		☐	☐	☒	NEW
Transitional Medical Assistance		☐	☐	☐	NEW
Extended Medicaid due to Spousal Support Collections		☐	☐	☐	NEW

Aged, Blind and Disabled

Eligibility Group Name		Covered In State Plan	Include RU In Package ?	Included in Another Submission Package	Source Type ?
SSI Beneficiaries		☐	☐	☐	APPROVED
Closed Eligibility Groups		☐	☐	☐	APPROVED
Individuals Deemed To Be Receiving SSI		☐	☐	☐	APPROVED
Working Individuals under 1619(b)		☐	☐	☐	APPROVED
Qualified Medicare Beneficiaries		☐	☐	☐	APPROVED
Qualified Disabled and Working Individuals		☐	☐	☐	APPROVED

Eligibility Group Name		Covered In State Plan	Include RU In Package 	Included in Another Submission Package	Source Type 
Specified Low Income Medicare Beneficiaries		☐	☐	☐	APPROVED
Qualifying Individuals		☐	☐	☐	APPROVED

Mandatory Eligibility Groups

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS00040 | VT-22-0002

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B. The state elects the Adult Group, described at 42 CFR 435.119.

☒ Yes ☐ No

Families and Adults

Eligibility Group Name		Covered In State Plan	Include RU In Package ?	Included in Another Submission Package	Source Type ?
Adult Group	?	☐	☐	☐	APPROVED

C. Additional Information (optional)

Eligibility Groups Deselected from Coverage

The following eligibility groups were previously covered in the source approved version of the state plan and deselected from coverage as part of this submission package:

- N/A

Medicaid State Plan Eligibility

Eligibility Groups - Mandatory Coverage

SSI Beneficiaries

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Individuals who are age 65 or older, or who have blindness or disability, who receive SSI.

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
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Superseded SPA ID	VT-92-10; VT-93-9 User-Entered		

The state covers the mandatory SSI beneficiaries group in accordance with the following provisions:

A. Characteristics

Individuals qualifying under this eligibility group must be receiving SSI, including:

1. Receiving SSI pending a final determination of blindness or disability;
2. Receiving SSI under an agreement with the Social Security Administration to dispose of resources that exceed the SSI dollar limits on resources; or
3. Receiving SSI benefits under section 1619(a) of the Act.

SSI Beneficiaries

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

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	User-Entered		

B. Additional Information (optional)

Medicaid State Plan Eligibility

Eligibility Groups - Mandatory Coverage

Closed Eligibility Groups

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Certain individuals who were eligible in the 1970s and 1980s and continue to qualify under specified requirements.

Package Header

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	User-Entered		

The state covers mandatory individuals who were previously eligible for Medicaid in the 1970s or 1980s and continue to meet the eligibility requirements. These individuals are described in one or more of the following sections A through F.

A. Individuals Receiving Mandatory State Supplements

Individuals qualifying under this eligibility group must be receiving mandatory state supplements.

Closed Eligibility Groups

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

B. Individuals Who Are Essential Spouses

Individuals qualifying under this eligibility group must meet all of the following criteria:

1. In December, 1973 were eligible for Medicaid as essential spouses;
2. Have continued to live with and be essential to the well-being of an individual who continues to meet the eligibility requirements for one of the cash assistance programs under OAA, AB, APTD, or AABD; and
3. Continue to meet the December, 1973 criteria that applied in determining the amount of the cash payment.

Closed Eligibility Groups

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

C. Institutionalized Individuals Continuously Eligible Since 1973

Individuals qualifying under this eligibility group must meet all of the following criteria:

1. Were eligible for Medicaid in December, 1973 as inpatients of medical institutions or residents of intermediate care facilities participating in Medicaid;
2. For each consecutive month after December, 1973, continue to meet the requirements for Medicaid eligibility in effect under the state plan in December, 1973 for institutionalized individuals, and remain institutionalized; and
3. Are determined by the state or a professional standards review organization to continue to need institutional care.

Closed Eligibility Groups

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

D. Individuals Eligible in 1973 Who Have Blindness or a Disability

Individuals qualifying under this eligibility group must meet all of the following criteria:

1. Meet all the current Medicaid eligibility requirements, except for blindness and disability;
2. Were eligible for Medicaid in December, 1973 as blind or disabled; and
3. Continue to meet the December, 1973 criteria for Medicaid.

Closed Eligibility Groups

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

E. Individuals Who Lost Eligibility for SSI/SSP Due to an Increase in OASDI Benefits in 1972

Individuals qualifying under this eligibility group must meet the following criteria:

1. Were entitled to and receiving cash assistance in August, 1972, or would have been eligible had they applied or not been institutionalized (and the state covered these optional groups); and
2. Would currently be eligible for SSI or state supplement, except for the increase in OASDI under Public Law No. 92-336.

Closed Eligibility Groups

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS00040 | VT-22-0002

Package Header

Package ID	VT2022MS00040	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

F. Disabled Widows and Widowers Ineligible for SSI due to Increase in OASDI

1. Individuals qualifying under this eligibility group must meet all of the following criteria:

- Are disabled widows or widowers who are deemed to be SSI or state supplement beneficiaries.
- Became ineligible for SSI or state supplement as a result of the elimination of the reduction factor required by section 134 of Public. Law No. 98-21.
- Would be eligible for SSI or state supplement, except for the increase under Public Law No. 98-21 and subsequent cost-of-living increases in widow's or widower's benefits under section 215(i) of the Act.
- Filed a written application for Medicaid on or before June 30,1988.

2. Individuals receiving only state supplement qualify for this group.

- ☒ Yes
- ☐ No

3. SSI Methodologies are used in calculating household income.

Closed Eligibility Groups

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

G. Additional Information (optional)

Medicaid State Plan Eligibility

Eligibility Groups - Mandatory Coverage

Individuals Deemed To Be Receiving SSI

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS00040 | VT-22-0002

Individuals who would be eligible for SSI, but for certain OASDI increases.

Package Header

Package ID	VT2022MS00040	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-92-1; VT-91-12		
	User-Entered		

The state covers mandatory individuals who would be eligible for SSI, but for an increase related to Social Security, in accordance with the following provisions:

A. Individuals Who Would be Eligible for SSI/SSP but for OASDI COLA Increases Since April, 1977

1. Individuals qualifying under this eligibility group must meet all of the following criteria:

- Currently receive OASDI benefits;
- Received SSI or state supplement in the past but became ineligible for these payments after April, 1977; and
- Would still be eligible for SSI or state supplement if the amount of OASDI cost-of-living increases paid under section 215(i) of the Act since the individual lost SSI or state supplement were deducted from current OASDI benefits.

2. Individuals receiving only state supplement qualify for this group.

☒ Yes

☐ No

Individuals Deemed To Be Receiving SSI

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS00040 | VT-22-0002

Package Header

Package ID	VT2022MS00040	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-92-1; VT-91-12 User-Entered		

B. Disabled Widows and Widowers Ineligible for SSI due to Early Receipt of Social Security

1. Individuals qualifying under this eligibility group must be widows or widowers with a disability who meet all of the following criteria:

- a. Are at least age 60;
- b. Are not entitled to hospital insurance benefits under Medicare Part A; and
- c. Become ineligible for SSI or state supplement because of mandatory application (under section 1611(e)(2)) for and receipt of widow's or widower's social security disability benefits under section 202(e) or (f) of the Act.

2. Individuals receiving only state supplement qualify for this group.

☒ Yes

☐ No

Individuals Deemed To Be Receiving SSI

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS00040 | VT-22-0002

Package Header

Package ID	VT2022MS00040	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-92-1; VT-91-12		
	User-Entered		

C. Adult Children with Disabilities

Individuals qualifying under this eligibility group must meet the following criteria:

1. Had blindness or a disability before the age of 22;
2. Are at least age 18;
3. Lost eligibility for SSI because they became entitled, based on their disability or blindness, to OASDI child's benefits under section 202(d) of the Act, or because they received an increase to those benefits;
4. Would be eligible for SSI, if not for their OASDI benefits or the increase in those benefits.

Individuals Deemed To Be Receiving SSI

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-92-1; VT-91-12		
	User-Entered		

D. Financial Methodologies

SSI methodologies are used in calculating household income.

Individuals Deemed To Be Receiving SSI

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-92-1; VT-91-12		
	User-Entered		

E. Additional Information (optional)

Medicaid State Plan Eligibility

Eligibility Groups - Mandatory Coverage

Working Individuals under 1619(b)

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Individuals who have blindness or a disability who participated in Medicaid as SSI beneficiaries or who were considered to be receiving SSI, who would still qualify for SSI except for earnings.

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
User-Entered			

The state covers the working individuals under 1619(b) mandatory eligibility group in accordance with the following provisions:

A. Characteristics

Individuals qualifying under this eligibility group must meet the following criteria:

1. In the month preceding the month of qualification under this group:
 - a. Received SSI or state supplement; and
 - b. Were eligible for Medicaid under the state plan.
2. Continue to have blindness or a disability.
3. Continue to meet all non-disability-related requirements for eligibility for SSI or state supplement.
4. Would qualify for SSI or State Supplement, except for earned income.
5. For whom the loss of eligibility for Medicaid would seriously inhibit the individual's ability to continue or obtain employment.
6. For whom the individual's earnings are not sufficient to provide a reasonable equivalent of SSI (including state supplement), Medicaid, and publicly funded attendant care services.

Working Individuals under 1619(b)

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

B. Additional Information (optional)

Medicaid State Plan Eligibility

Eligibility Groups - Mandatory Coverage

Qualified Medicare Beneficiaries

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Individuals with income equal to or less than 100% of the FPL, who are entitled to Medicare Part A, and who qualify for Medicare cost-sharing.

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
User-Entered			

The state covers the mandatory qualified Medicare beneficiaries group in accordance with the following provisions:

A. Characteristics

Individuals qualifying under this eligibility group must meet the following criteria:

1. Are entitled to hospital insurance benefits under part A of title XVIII (Medicare Part A), including individuals who have purchased a premium to enroll in Part A.
2. Have income and resources at or below the standard for this group.

Qualified Medicare Beneficiaries

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS00040 | VT-22-0002

Package Header

Package ID VT2022MS00040
Submission Type Official
Approval Date 12/20/2022
Superseded SPA ID VT-91-12
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SPA ID VT-22-0002
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Effective Date 7/1/2022

B. Financial Methodologies

1. SSI methodologies are used in calculating household income. Please refer as necessary to Non-MAGI Methodologies, completed by the state.

2. Less restrictive methodologies are used in calculating countable income.

- ☒ Yes
☐ No

The less restrictive income methodologies are:

☐ General income disregard:

Name of disregard:	Description:
COLA Forecast	From January 1 until April 1, the Department will disregard the difference between its estimated Federal Poverty Levels (FPLs) and the currently approved FPLs as published in the Federal Register. Effective April 1, the Department will issue a second increase if the actual FPLs exceed its estimate. If the department's estimated FPLs issued January 1 are higher than the actual FPLs, the department will continue to disregard the difference between its estimated FPLs and the ones published in the Federal Register.

☐ Census Bureau wages are disregarded.

Description of disregard: Wages paid by the Census Bureau for temporary employment related to census activities are excluded as income for this eligibility group.

☐ A less restrictive methodology is used with respect to lump sum income:

☐ Specified methodology for the treatment of lump sums as income:

Name of methodology:	Description:
Lump Sum Receipt of Earnings	Lump sum receipt of earnings such as sale of crops or livestock are averaged over the six-month accounting period.

☐ A specified type of income is disregarded:

Name of income type:	Description:
Income of an ineligible spouse	Countable income of an ineligible spouse is added to the countable income of an eligible individual and compared, after deductions, to the Medically Needy Income Level for two.

Name of income type:	Description:
Cash Contributions or Gifts	Infrequent or irregular voluntary cash contributions or gifts are excluded.
Vermont Tax Credit	Any refundable credit against taxes made pursuant to Vermont's child tax credit (32 V.S.A. § 5830f) or pursuant to a similar tax credit enacted by the State and directed by state law to not be considered as countable income for benefit programs.
Workforce Recruitment & Retention Program	Any wages that are made pursuant to Vermont's Premium Pay for Workforce Recruitment and Retention Program enacted in Act 83 of 2021 or a similar workforce recruitment and retention program enacted in Vermont and directed by state law to not be considered as countable income in determining eligibility for benefit programs.

3. Less restrictive methodologies are used in calculating countable resources.

- ☒ Yes
☐ No

The less restrictive resource methodologies are:

☐ All resources are disregarded. No resource test is applied.

Qualified Medicare Beneficiaries

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

C. Income Standard Used

The amount of the income standard for this group is 100% FPL.

D. Resource Standard Used

The resource standard is the same used to determine eligibility for the Medicare Part D full-benefit low-income subsidy (LIS) (but without regard to the life insurance policy exclusion applied in LIS resource eligibility determinations). This standard is three times the SSI resource standard, adjusted annually in accordance with the consumer price index.

E. Medical Assistance Provided

Medical assistance is limited to payment of co-insurance and deductibles for Medicare Parts A, B and C and payment for the premiums for Medicare Parts A and B.

Medical assistance begins the first day of the month following the month in which the individual is determined to qualify for this eligibility group.

Qualified Medicare Beneficiaries

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

F. Additional Information (optional)

Medicaid State Plan Eligibility

Eligibility Groups - Mandatory Coverage

Qualified Disabled and Working Individuals

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Working individuals with a disability, with income equal to or less than 200% of the FPL, who are entitled to Medicare Part A under section 1818A, and who qualify for payment of Medicare Part A premiums.

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
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Superseded SPA ID	VT-10-004		
User-Entered			

The state covers the mandatory qualified disabled and working individuals group in accordance with the following provisions:

A. Characteristics

Individuals qualifying under this eligibility group must meet the following criteria:

1. Are entitled to purchase a premium to enroll for hospital insurance benefits under part A of title XVIII (Medicare Part A) pursuant to section 1818A (hospital insurance benefits for disabled individuals who have exhausted other entitlement).
2. Have income and resources at or below the standard for this group.
3. Are not otherwise eligible for medical assistance.

B. Financial Methodologies

SSI methodologies are used in calculating household income. Please refer as necessary to Non-MAGI Methodologies, completed by the state.

C. Income Standard Used

The amount of the income standard for this group is 200% FPL.

D. Resource Standard Used

The resource standard is two times the standard used in the SSI program.

E. Medical Assistance Provided

Medical assistance is limited to payment for Medicare Part A premiums.

Qualified Disabled and Working Individuals

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
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Superseded SPA ID	VT-10-004		
	User-Entered		

F. Additional Information (optional)

Medicaid State Plan Eligibility

Eligibility Groups - Mandatory Coverage

Specified Low Income Medicare Beneficiaries

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Individuals with income above 100% and below 120% of the FPL who are entitled to Medicare Part A, who qualify for payment of Medicare Part B premiums.

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
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	User-Entered		

The state covers the mandatory specified low income Medicare beneficiaries group in accordance with the following provisions:

A. Characteristics

Individuals qualifying under this eligibility group must meet the following criteria:

1. Would qualify as Qualified Medicare Beneficiaries (described in section 1905(p)(1) of the Act), except that their income exceeds the income level for that eligibility group.
2. Have income below the income standard and resources at or below the resource standard for this group.

Specified Low Income Medicare Beneficiaries

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS00040 | VT-22-0002

Package Header

Package ID VT2022MS00040
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SPA ID VT-22-0002
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Effective Date 7/1/2022

B. Financial Methodologies

1. SSI methodologies are used in calculating household income. Please refer as necessary to Non-MAGI Methodologies, completed by the state.

2. Less restrictive methodologies are used in calculating countable income.

- ☒ Yes
☐ No

The less restrictive income methodologies are:

☐ General income disregard:

Name of disregard:	Description:
COLA Forecast	From January 1 until April 1, the Department will disregard the difference between its estimated Federal Poverty Levels (FPLs) and the currently approved FPLs as published in the Federal Register. Effective April 1, the Department will issue a second increase if the actual FPLs exceed its estimate. If the department's estimated FPLs issued January 1 are higher than the actual FPLs, the department will continue to disregard the difference between its estimated FPLs and the ones published in the Federal Register.

☐ Census Bureau wages are disregarded.

Description of disregard: Wages paid by the Census Bureau for temporary employment related to census activities are excluded as income for this eligibility group.

☐ A less restrictive methodology is used with respect to lump sum income:

☐ Specified methodology for the treatment of lump sums as income:

Name of methodology:	Description:
Lump Sum Receipt of Earnings	Lump sum receipt of earnings such as sale of crops or livestock are averaged over the six-month accounting period.

☐ A specified type of income is disregarded:

Name of income type:	Description:
Income of an ineligible spouse	Countable income of an ineligible spouse is added to the countable income of an eligible individual and compared, after deductions, to the Medically Needy Income Level for two.

Name of income type:	Description:
Cash Contributions or Gifts	Infrequent or irregular voluntary cash contributions or gifts are excluded.
Vermont Tax Credit	Any refundable credit against taxes made pursuant to Vermont's child tax credit (32 V.S.A. § 5830f) or pursuant to a similar tax credit enacted by the State and directed by state law to not be considered as countable income for benefit programs.
Workforce Recruitment & Retention Program	Any wages that are made pursuant to Vermont's Premium Pay for Workforce Recruitment and Retention Program enacted in Act 83 of 2021 or a similar workforce recruitment and retention program enacted in Vermont and directed by state law to not be considered as countable income in determining eligibility for benefit programs.

3. Less restrictive methodologies are used in calculating countable resources.

- ☒ Yes
☐ No

The less restrictive resource methodologies are:

☐ All resources are disregarded. No resource test is applied.

Specified Low Income Medicare Beneficiaries

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

C. Income Standard Used

Family income must be above 100% FPL and below 120% FPL.

D. Resource Standard Used

The resource standard is the same used to determine eligibility for the Medicare Part D full-benefit low-income subsidy (LIS) (but without regard to the life insurance policy exclusion applied in LIS resource eligibility determinations). This standard is three times the SSI resource standard, adjusted annually in accordance with the consumer price index.

E. Medical Assistance Provided

Medical assistance is limited to payment for Medicare Part B premiums.

Specified Low Income Medicare Beneficiaries

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

F. Additional Information (optional)

Medicaid State Plan Eligibility

Eligibility Groups - Mandatory Coverage

Qualifying Individuals

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Individuals with income at or above 120% and below 135% of the FPL who are entitled to Medicare Part A, who qualify for payment of Medicare Part B premiums.

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
User-Entered			

The state covers the mandatory qualifying individuals group in accordance with the following provisions:

A. Characteristics

Individuals qualifying under this eligibility group must meet all of the following criteria:

1. Would qualify as Qualified Medicare Beneficiaries (described in section 1905(p)(1) of the Act), except that their income exceeds the income level for that eligibility group.
2. Are not otherwise eligible for Medicaid under the state plan.
3. Have income below the income standard and resources at or below the resource standard for this group.

Qualifying Individuals

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS00040 | VT-22-0002

Package Header

Package ID VT2022MS00040
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Approval Date 12/20/2022
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User-Entered

SPA ID VT-22-0002
Initial Submission Date 9/30/2022
Effective Date 7/1/2022

B. Financial Methodologies

1. SSI methodologies are used in calculating household income. Please refer as necessary to Non-MAGI Methodologies, completed by the state.

2. Less restrictive methodologies are used in calculating countable income.

- ☒ Yes
☐ No

The less restrictive income methodologies are:

☐ General income disregard:

Name of disregard:	Description:
COLA Forecast	From January 1 until April 1, the Department will disregard the difference between its estimated Federal Poverty Levels (FPLs) and the currently approved FPLs as published in the Federal Register. Effective April 1, the Department will issue a second increase if the actual FPLs exceed its estimate. If the department's estimated FPLs issued January 1 are higher than the actual FPLs, the department will continue to disregard the difference between its estimated FPLs and the ones published in the Federal Register.

☐ Census Bureau wages are disregarded.

Description of disregard: Wages paid by the Census Bureau for temporary employment related to census activities are excluded as income for this eligibility group.

☐ A less restrictive methodology is used with respect to lump sum income:

☐ Specified methodology for the treatment of lump sums as income:

Name of methodology:	Description:
Lump Sum Receipt of Earnings	Lump sum receipt of earnings such as sale of crops or livestock are averaged over the six-month accounting period.

☐ A specified type of income is disregarded:

Name of income type:	Description:
Income of an ineligible spouse	Countable income of an ineligible spouse is added to the countable income of an eligible individual and compared, after deductions, to the Medically Needy Income Level for two.

Name of income type:	Description:
Cash Contributions or Gifts	Infrequent or irregular voluntary cash contributions or gifts are excluded.
Vermont Tax Credit	Any refundable credit against taxes made pursuant to Vermont's child tax credit (32 V.S.A. § 5830f) or pursuant to a similar tax credit enacted by the State and directed by state law to not be considered as countable income for benefit programs.
Workforce Recruitment & Retention Program	Any wages that are made pursuant to Vermont's Premium Pay for Workforce Recruitment and Retention Program enacted in Act 83 of 2021 or a similar workforce recruitment and retention program enacted in Vermont and directed by state law to not be considered as countable income in determining eligibility for benefit programs.

3. Less restrictive methodologies are used in calculating countable resources.

- ☒ Yes
☐ No

The less restrictive resource methodologies are:

☐ All resources are disregarded. No resource test is applied.

Qualifying Individuals

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

C. Income Standard Used

Family income must be at or above 120% FPL and below 135% FPL.

D. Resource Standard Used

The resource standard is the same used to determine eligibility for the Medicare Part D full-benefit low-income subsidy (LIS) (but without regard to the life insurance policy exclusion applied in LIS resource eligibility determinations). This standard is three times the SSI resource standard, adjusted annually in accordance with the consumer price index.

E. Medical Assistance Provided

Medical assistance is limited to payment for Medicare Part B premiums.

Qualifying Individuals

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

F. Additional Information (optional)

Medicaid State Plan Eligibility

Optional Eligibility Groups

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS00040 | VT-22-0002

Package Header

Package ID	VT2022MS00040	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-21-0002		
System-Derived			

A. Options for Coverage

The state provides Medicaid to specified optional groups of individuals.

☒ Yes ☐ No

The optional eligibility groups covered in the state plan are (elections made in this screen may not be comprehensive during the transition period from the paper-based state plan to MACPro):

Families and Adults

Eligibility Group Name		Covered In State Plan	Include RU In Package ?	Included in Another Submission Package	Source Type ?
Optional Coverage of Parents and Other Caretaker Relatives		☐	☐	☐	NEW
Reasonable Classifications of Individuals under Age 21		☐	☐	☐	NEW
Children with Non-IV-E Adoption Assistance		☐	☐	☐	CONVERTED
Independent Foster Care Adolescents		☐	☐	☐	NEW
Optional Targeted Low Income Children		☐	☐	☐	NEW
Individuals above 133% FPL under Age 65		☐	☐	☐	NEW
Individuals Needing Treatment for Breast or Cervical Cancer		☐	☐	☐	APPROVED
Individuals Eligible for Family Planning Services		☐	☐	☐	NEW
Individuals with Tuberculosis		☐	☐	☐	NEW
Individuals Electing COBRA Continuation Coverage		☐	☐	☐	NEW

Aged, Blind and Disabled

Eligibility Group Name		Covered In State Plan	Include RU In Package ?	Included in Another Submission Package	Source Type ?
Individuals Eligible for but Not Receiving Cash Assistance		☐	☐	☐	APPROVED

Eligibility Group Name		Covered In State Plan	Include RU In Package ?	Included in Another Submission Package	Source Type ?
Individuals Eligible for Cash Except for Institutionalization		☐	☐	☐	APPROVED
Individuals Receiving Home and Community-Based Waiver Services under Institutional Rules		☐	☐	☐	NEW
Optional State Supplement Beneficiaries		☐	☐	☐	APPROVED
Individuals in Institutions Eligible under a Special Income Level		☐	☐	☐	APPROVED
PACE Participants		☐	☐	☐	NEW
Individuals Receiving Hospice		☐	☐	☐	APPROVED
Children under Age 19 with a Disability		☐	☐	☐	NEW
Age and Disability-Related Poverty Level		☐	☐	☐	NEW
Work Incentives		☐	☐	☐	APPROVED
Ticket to Work Basic		☐	☐	☐	NEW
Ticket to Work Medical Improvements		☐	☐	☐	NEW
Family Opportunity Act Children with a Disability		☐	☐	☐	NEW
Individuals Receiving State Plan Home and Community-Based Services		☐	☐	☐	NEW
Individuals Receiving State Plan Home and Community-Based Services Who Are Otherwise Eligible for HCBS Waivers		☐	☐	☐	NEW

Optional Eligibility Groups

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS00040 | VT-22-0002

Package Header

Package ID	VT2022MS00040	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-21-0002		
	System-Derived		

B. Medically Needy Options for Coverage

The state provides Medicaid to specified groups of individuals who are medically needy.

☒ Yes ☐ No

The medically needy eligibility groups covered in the state plan are:

1. Mandatory Medically Needy:

Families and Adults

Eligibility Group Name		Covered In State Plan	Include RU In Package ?	Included in Another Submission Package	Source Type ?
Medically Needy Pregnant Women		☐	☐	☐	NEW
Medically Needy Children under Age 18		☐	☐	☐	NEW

Aged, Blind and Disabled

Eligibility Group Name		Covered In State Plan	Include RU In Package ?	Included in Another Submission Package	Source Type ?
Protected Medically Needy Individuals Who Were Eligible in 1973		☐	☐	☐	APPROVED

2. Optional Medically Needy:

Families and Adults

Eligibility Group Name		Covered In State Plan	Include RU In Package ?	Included in Another Submission Package	Source Type ?
Medically Needy Reasonable Classifications of Individuals under Age 21		☐	☐	☐	NEW
Medically Needy Parents and Other Caretaker Relatives		☐	☐	☐	NEW

Aged, Blind and Disabled

Eligibility Group Name		Covered In State Plan	Include RU In Package ?	Included in Another Submission Package	Source Type ?
Medically Needy Populations Based on Age, Blindness or Disability		☐	☐	☐	APPROVED

Optional Eligibility Groups

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
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Superseded SPA ID	VT-21-0002		
	System-Derived		

C. Additional Information (optional)

Eligibility Groups Deselected from Coverage

The following eligibility groups were previously covered in the source approved version of the state plan and deselected from coverage as part of this submission package:

- Individuals Receiving Home and Community- Based Waiver Services under Institutional Rules

Medicaid State Plan Eligibility

Eligibility Groups - Options for Coverage

Individuals Eligible for but Not Receiving Cash Assistance

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Individuals who are eligible for but not receiving federal cash assistance or an optional state supplement.

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

The state covers the optional Individuals Eligible for but Not Receiving Cash Assistance eligibility group in accordance with the following provisions:

A. Characteristics

Individuals qualifying under this eligibility group must meet the following criteria:

1. Meet the eligibility requirements of at least one of the following cash assistance programs:

- ☐ a. SSI
- ☐ b. Optional State Supplement
- ☐ c. AFDC

2. Do not receive cash assistance under these programs.

Individuals Eligible for but Not Receiving Cash Assistance

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS00040 | VT-22-0002

Package Header

Package ID	VT2022MS00040	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

B. Individuals Covered

1. The state covers all individuals who meet the characteristics described in section A.

☐ Yes

☒ No

2. The state covers the following populations:

- ☐ a. Individuals age 65 or older
- ☐ b. Individuals who have blindness
- ☐ c. Individuals who have a disability
- ☐ d. All children under a specified age limit:
- ☐ e. Reasonable classifications of children
- ☐ f. Parents and other caretaker relatives
- ☐ g. Pregnant women
- ☐ h. Other population

Individuals Eligible for but Not Receiving Cash Assistance

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS00040 | VT-22-0002

Package Header

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C. Financial Methodologies

1. In calculating household income and resources for individuals who are seeking eligibility on the basis of being age 65 or older or having blindness or disability, SSI methodologies are used. Please refer as necessary to Non-MAGI Methodologies, completed by the state.

3. Less restrictive methodologies are used in calculating countable income.

☒ Yes

☐ No

The less restrictive income methodologies are:

☐ General income disregard:

Name of disregard:	Description:
COLA Forecast	From January 1 until April 1, the Department will disregard the difference between its estimated Federal Poverty Levels (FPLs) and the currently approved FPLs as published in the Federal Register. Effective April 1, the Department will issue a second increase if the actual FPLs exceed its estimate. If the department's estimated FPLs issued January 1 are higher than the actual FPLs, the department will continue to disregard the difference between its estimated FPLs and the ones published in the Federal Register.

☐ Census Bureau wages are disregarded.

Description of disregard: Wages paid by the Census Bureau for temporary employment related to census activities are excluded as income for this eligibility group.

☐ A less restrictive methodology is used with respect to lump sum income:

☐ Specified methodology for the treatment of lump sums as income:

Name of methodology:	Description:
Lump Sum Receipt of Earnings	Lump sum receipt of earnings such as sale of crops or livestock are averaged over the six-month accounting period.

☐ A specified type of income is disregarded:

Name of income type:	Description:
Income of an ineligible spouse	Countable income of an ineligible spouse is added to the countable income of an eligible individual and compared, after deductions, to the

Name of income type:	Description: Medically Needy Income Level for two.
Cash Contributions or Gifts	Infrequent or irregular voluntary cash contributions or gifts are excluded.
Vermont Tax Credit	Any refundable credit against taxes made pursuant to Vermont's child tax credit (32 V.S.A. § 5830f) or pursuant to a similar tax credit enacted by the State and directed by state law to not be considered as countable income for benefit programs.
Workforce Recruitment & Retention Program	Any wages that are made pursuant to Vermont's Premium Pay for Workforce Recruitment and Retention Program enacted in Act 83 of 2021 or a similar workforce recruitment and retention program enacted in Vermont and directed by state law to not be considered as countable income in determining eligibility for benefit programs.

4. Less restrictive methodologies are used in calculating countable resources.

- ☒ Yes
☐ No

The less restrictive resource methodologies are:

- ☐ The state uses a less restrictive methodology with respect to resources set aside for burial.
☐ Specified methodology for the treatment of resources set aside for burial:

Name of methodology:	Description:
Burial Funds	Separately identifiable burial funds designated for burial expenses, either singly or in combination, are exempt in an amount not to exceed \$10,000. The burial funds must be designated by the title of the fund or by sworn statement provided to the department. The burial funds in conjunction with the irrevocable burial trust referenced in Supplement 10 to Attachment 2.6-A, page 1, last paragraph, cannot exceed \$10,000 in total.

- ☐ A specified type of resource is disregarded:

Name of resource type:	Description:
Real Property	Real property is excluded if the income it produces is significant to meeting living expenses and consistent with its fair market value.
Savings from Excluded Income	Savings from excluded income are excluded.
Real Property for Sale	Non exempt real property which is up for sale is excluded as long as

Name of resource type:	Description:
	owners verify that they are making reasonable efforts to sell it.
Automobiles	Automobiles of any value are excluded.
Equity value of Property	No limit is placed on the equity value of property used to produce goods for home consumption.
Life Estates	Life estates in real property are excluded when the owner does not retain the power to sell the real property.
Annuities, promissory notes, and similar resources	Annuities, promissory notes, and similar resources that produce income are exempt resources if they would otherwise be countable by SSI as long as they meet the following criteria: (1) Annuities are not a countable resource if they: have no beneficiary other than an individual requesting Medicaid or his/her spouse; and provide for payments to applicants or their spouses, in equal intervals and equal amounts; and do not exceed the life expectancy of the applicants or their spouses, as determined by the department; and return to the beneficiary at least the amount used to establish the contract and any additional payments plus any earnings, as specified in the contract; and do not pay anyone other than the applicant, the applicant's spouse, even if the applicant or spouse dies before the payment period ends. The department will also consider an annuity to meet the requirements above, if the owner of the annuity elects to designate Vermont Medicaid as the primary beneficiary up to the amount of long-term care payments it made, and names a contingent beneficiary other than the applicant or spouse to receive any surplus after Vermont Medicaid is paid. (2) Promissory notes and similar resources that produce income are not a countable resource if: (a) they meet the requirements in subsection (1) above, or (b) the individual owned a nonnegotiable or nonassignable promissory note executed before September 1, 2005 and the individual or spouse can expect to receive the full fair market value of the resource within the expected lifetime of the individual or spouse, as determined by the department.
State Tax Credit	Any refundable credit against taxes made pursuant to Vermont's child tax credit (32 V.S.A. § 5830f) or pursuant to a similar tax credit enacted by the State and directed by state law to not be considered

Name of resource type:	Description:
	as countable resources for benefit programs.
Workforce Recruitment & Retention Program	Any wages that are made pursuant to Vermont's Premium Pay for Workforce Recruitment and Retention Program enacted in Act 83 of 2021 or a similar workforce recruitment and retention program enacted in Vermont and directed by state law to not be considered as countable resources in determining eligibility for benefit programs.

☐ The following less restrictive methodologies are used:

Name of methodology:	Description:
Resource spend-down	Resources may be spent-down to the applicable Resource Maximum if used for medical or maintenance expenses.
Resources at any time during the month	Vermont does not use the first moment of the first day of the month in counting resources. If the applicant(s) is under resources at any time during the month, Medicaid is granted for the entire month if all other eligibility criteria are met.
Resources of Couple	Resources of couple, where one member has been admitted to a long-term care facility are combined for 6 months if this is to the advantage of the couple.
Resources in account up to \$30,000	Resources set aside in a separate bank account in the name of the Medicaid beneficiary are exempt in an amount not to exceed \$30,000. The funds may only be spent on medical care, assistive technology devices or home modifications not covered by Medicare, private insurance or Medicaid. They must be found to be reasonable and necessary to assist an individual in achieving or maintaining independent living. Up to \$500 per month of these resources may be spent for medical care and assistive technology devices. A one time expenditure of up to \$7,500 of these resources may be spent for home modifications.

Individuals Eligible for but Not Receiving Cash Assistance

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

D. Income Standard Used

The income standard used is the standard of the most closely related cash assistance program.

E. Resource Standard Used

The resource standard used is the standard of the most closely related cash assistance program.

Individuals Eligible for but Not Receiving Cash Assistance

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
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	User-Entered		

F. Additional Information (optional)

Medicaid State Plan Eligibility

Eligibility Groups - Options for Coverage

Individuals Eligible for Cash Except for Institutionalization

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Individuals who would be eligible for federal cash assistance or an optional state supplement, except for institutionalization.

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

The state covers the optional Individuals Eligible for Cash Except for Institutionalization eligibility group in accordance with the following provisions:

A. Characteristics

Individuals qualifying under this eligibility group must meet the following criteria:

1. Are in a medical institution.
2. Would meet the eligibility requirements for at least one of the following cash assistance programs, but for the lower income standards used to determine eligibility for institutionalized individuals:
 - ☐ a. SSI
 - ☐ b. Optional State Supplement
 - ☐ c. AFDC

Individuals Eligible for Cash Except for Institutionalization

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS00040 | VT-22-0002

Package Header

Package ID	VT2022MS00040	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

B. Individuals Covered

1. The state covers all individuals who meet the characteristics described in section A.

- ☐ Yes
- ☒ No

2. The state covers the following populations:

- ☐ a. Individuals age 65 or older
- ☐ b. Individuals who have blindness
- ☐ c. Individuals who have a disability
- ☐ d. All children under a specified age limit:
- ☒ i. Under age 21
 - ☐ ii. Under age 20
 - ☐ iii. Under age 19
 - ☐ iv. Under age 18
- ☐ e. Reasonable classifications of children
- ☐ f. Parents and other caretaker relatives
- ☐ g. Pregnant women
- ☐ h. Other population

Individuals Eligible for Cash Except for Institutionalization

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS00040 | VT-22-0002

Package Header

Package ID	VT2022MS00040	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
User-Entered			

C. Financial Methodologies

1. In calculating household income and resources for individuals who are seeking eligibility on the basis of being age 65 or older or having blindness or disability, SSI methodologies are used. Please refer as necessary to Non-MAGI Methodologies, completed by the state.

2. In calculating household income and resources for populations for which AFDC is the most closely related program, the following methodology(ies) are used:

- ☒ a. MAGI-like methodologies. Please refer as necessary to Non-MAGI Methodologies, completed by the state.
- ☐ b. AFDC methodologies. Please refer as necessary to Non-MAGI Methodologies, completed by the state.

3. Less restrictive methodologies are used in calculating countable income.

- ☒ Yes
- ☐ No

The less restrictive income methodologies are:

☐ General income disregard:

Name of disregard:	Description:
COLA Forecast	From January 1 until April 1, the Department will disregard the difference between its estimated Federal Poverty Levels (FPLs) and the currently approved FPLs as published in the Federal Register. Effective April 1, the Department will issue a second increase if the actual FPLs exceed its estimate. If the department's estimated FPLs issued January 1 are higher than the actual FPLs, the department will continue to disregard the difference between its estimated FPLs and the ones published in the Federal Register.

☐ Census Bureau wages are disregarded.

Description of disregard: Wages paid by the Census Bureau for temporary employment related to census activities are excluded as income for this eligibility group.

☐ A less restrictive methodology is used with respect to lump sum income:

☐ Specified methodology for the treatment of lump sums as income:

Name of methodology:	Description:
Lump Sum Receipt of Earnings	Lump sum receipt of earnings such as sale of crops or livestock are averaged over the six-month accounting period.

☐ A specified type of income is disregarded:

Name of income type:	Description:
Income of an ineligible spouse	Countable income of an ineligible spouse is added to the countable income of an eligible individual and compared, after deductions, to the Medically Needy Income Level for two.
Cash Contributions or Gifts	Infrequent or irregular voluntary cash contributions or gifts are excluded.
Vermont Tax Credit	Any refundable credit against taxes made pursuant to Vermont's child tax credit (32 V.S.A. § 5830f) or pursuant to a similar tax credit enacted by the State and directed by state law to not be considered as countable income for benefit programs.
Workforce Recruitment & Retention Program	Any wages that are made pursuant to Vermont's Premium Pay for Workforce Recruitment and Retention Program enacted in Act 83 of 2021 or a similar workforce recruitment and retention program enacted in Vermont and directed by state law to not be considered as countable income in determining eligibility for benefit programs.

4. Less restrictive methodologies are used in calculating countable resources.

☒ Yes

☐ No

The less restrictive resource methodologies are:

☐ The state uses a less restrictive methodology with respect to resources set aside for burial.

☐ Specified methodology for the treatment of resources set aside for burial:

Name of methodology:	Description:
Burial Funds	Separately identifiable burial funds designated for burial expenses, either singly or in combination, are exempt in an amount not to exceed \$10,000. The burial funds must be designated by the title of the fund or by sworn statement provided to the department. The burial funds in conjunction with the irrevocable burial trust referenced in Supplement 10 to Attachment 2.6-A, page 1, last paragraph, cannot exceed \$10,000 in total.

☐ A specified type of resource is disregarded:

Name of resource type:	Description:
Real Property	Real property is excluded if the income it produces is significant to meeting living expenses and consistent with its fair market value.

Name of resource type:	Description:
Savings from Excluded Income	Savings from excluded income are excluded.
Real Property for Sale	Non exempt real property which is up for sale is excluded as long as owners verify that they are making reasonable efforts to sell it.
Automobiles	Automobiles of any value are excluded.
Equity value of Property	No limit is placed on the equity value of property used to produce goods for home consumption.
Life Estates	Life estates in real property are excluded when the owner does not retain the power to sell the real property.
Annuities, promissory notes, and similar resources	Annuities, promissory notes, and similar resources that produce income are exempt resources if they would otherwise be countable by SSI as long as they meet the following criteria: (1) Annuities are not a countable resource if they: have no beneficiary other than an individual requesting Medicaid or his/her spouse; and provide for payments to applicants or their spouses, in equal intervals and equal amounts; and do not exceed the life expectancy of the applicants or their spouses, as determined by the department; and return to the beneficiary at least the amount used to establish the contract and any additional payments plus any earnings, as specified in the contract; and do not pay anyone other than the applicant, the applicant's spouse, even if the applicant or spouse dies before the payment period ends. The department will also consider an annuity to meet the requirements above, if the owner of the annuity elects to designate Vermont Medicaid as the primary beneficiary up to the amount of long-term care payments it made, and names a contingent beneficiary other than the applicant or spouse to receive any surplus after Vermont Medicaid is paid. (2) Promissory notes and similar resources that produce income are not a countable resource if: (a) they meet the requirements in subsection (1) above, or (b) the individual owned a nonnegotiable or nonassignable promissory note executed before September 1, 2005 and the individual or spouse can expect to receive the full fair market value of the resource within the expected lifetime of the individual or spouse, as determined by the department.

Name of resource type:	Description:
State Tax Credit	Any refundable credit against taxes made pursuant to Vermont's child tax credit (32 V.S.A. § 5830f) or pursuant to a similar tax credit enacted by the State and directed by state law to not be considered as countable resources for benefit programs.
Workforce Recruitment & Retention Program	Any wages that are made pursuant to Vermont's Premium Pay for Workforce Recruitment and Retention Program enacted in Act 83 of 2021 or a similar workforce recruitment and retention program enacted in Vermont and directed by state law to not be considered as countable resources in determining eligibility for benefit programs.

☐ The following less restrictive methodologies are used:

Name of methodology:	Description:
Resource spend-down	Resources may be spent-down to the applicable Resource Maximum if used for medical or maintenance expenses.
Resources at any time during the month	Vermont does not use the first moment of the first day of the month in counting resources. If the applicant(s) is under resources at any time during the month, Medicaid is granted for the entire month if all other eligibility criteria are met.
Resources of Couple	Resources of couple, where one member has been admitted to a long-term care facility are combined for 6 months if this is to the advantage of the couple.
Resources in account up to \$30,000	Resources set aside in a separate bank account in the name of the Medicaid beneficiary are exempt in an amount not to exceed \$30,000. The funds may only be spent on medical care, assistive technology devices or home modifications not covered by Medicare, private insurance or Medicaid. They must be found to be reasonable and necessary to assist an individual in achieving or maintaining independent living. Up to \$500 per month of these resources may be spent for medical care and assistive technology devices. A one time expenditure of up to \$7,500 of these resources may be spent for home modifications.

Individuals Eligible for Cash Except for Institutionalization

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

D. Income Standard Used

The income standard used is the standard of the most closely related cash assistance program.

E. Resource Standard Used

The resource standard used is the standard of the most closely related cash assistance program.

Individuals Eligible for Cash Except for Institutionalization

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
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Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

F. Additional Information (optional)

Medicaid State Plan Eligibility

Eligibility Groups - Options for Coverage

Individuals Receiving Home and Community-Based Waiver Services under Institutional Rules

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Individuals who would be eligible for Medicaid if they were in an institution and who receive home and community-based services.

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	N/A removed from package User-Entered		

Group No Longer Covered

Covered Through ⓘ 6/30/2022 **Terminated As Of** ⓘ 7/1/2022

Medicaid State Plan Eligibility

Eligibility Groups - Options for Coverage

Individuals in Institutions Eligible under a Special Income Level

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Individuals who are in medical institutions for at least 30 consecutive days who are eligible under a special income level.

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12 User-Entered		

The state covers Individuals in Institutions Eligible under a Special Income Level in accordance with the following provisions:

A. Characteristics

Individuals qualifying under this eligibility group must meet the following criteria:

1. Have been in a medical institution for at least 30 consecutive days.
2. Have income at or below a standard described in section D.

Individuals in Institutions Eligible under a Special Income Level

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

B.Individuals Covered

1. The state covers all individuals who meet the characteristics described in section A.

- ☒ Yes
- ☐ No

Individuals in Institutions Eligible under a Special Income Level

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS00040 | VT-22-0002

Package Header

Package ID	VT2022MS00040	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
User-Entered			

C. Financial Methodologies

1. In calculating household income, the methodologies of the most closely related cash assistance program are used, except that disregards are not applied.
2. In calculating household resources, the methodologies of the most closely related cash assistance program are used. Please refer as necessary to Non-MAGI Methodologies, completed by the state.
3. Less restrictive methodologies are used in calculating countable resources.

- ☒ Yes
- ☐ No

The less restrictive resource methodologies are:

- ☐ The state uses a less restrictive methodology with respect to resources set aside for burial.
- ☐ Specified methodology for the treatment of resources set aside for burial:

Name of methodology:	Description:
Burial Funds	Separately identifiable burial funds designated for burial expenses, either singly or in combination, are exempt in an amount not to exceed \$10,000. The burial funds must be designated by the title of the fund or by sworn statement provided to the department. The burial funds in conjunction with the irrevocable burial trust referenced in Supplement 10 to Attachment 2.6-A, page 1, last paragraph, cannot exceed \$10,000 in total.

- ☐ A specified type of resource is disregarded:

Name of resource type:	Description:
Annuities, promissory notes, and similar resources	Annuities, promissory notes, and similar resources that produce income are exempt resources if they would otherwise be countable by SSI as long as they meet the following criteria: (1) Annuities are not a countable resource if they: have no beneficiary other than an individual requesting Medicaid or his/her spouse; and provide for payments to applicants or their spouses, in equal intervals and equal amounts; and do not exceed the life expectancy of the applicants or their spouses, as determined by the department; and return to the beneficiary at least the amount used to establish the contract and any additional payments plus any earnings, as specified in the contract; and do not pay anyone other than the applicant, the applicant's spouse, even if the

Name of resource type:	Description:
	applicant or spouse dies before the payment period ends. The department will also consider an annuity to meet the requirements above, if the owner of the annuity elects to designate Vermont Medicaid as the primary beneficiary up to the amount of long-term care payments it made, and names a contingent beneficiary other than the applicant or spouse to receive any surplus after Vermont Medicaid is paid. (2) Promissory notes and similar resources that produce income are not a countable resource if: (a) they meet the requirements in subsection (1) above, or (b) the individual owned a nonnegotiable or nonassignable promissory note executed before September 1, 2005 and the individual or spouse can expect to receive the full fair market value of the resource within the expected lifetime of the individual or spouse, as determined by the department.
State Tax Credit	Any refundable credit against taxes made pursuant to Vermont's child tax credit (32 V.S.A. § 5830f) or pursuant to a similar tax credit enacted by the State and directed by state law to not be considered as countable resources for benefit programs.
Workforce Recruitment & Retention Program	Any wages that are made pursuant to Vermont's Premium Pay for Workforce Recruitment and Retention Program enacted in Act 83 of 2021 or a similar workforce recruitment and retention program enacted in Vermont and directed by state law to not be considered as countable resources in determining eligibility for benefit programs.
Real Property	Real property is excluded if the income it produces is significant to meeting living expenses and consistent with its fair market value.
Savings from Excluded Income	Savings from excluded income are excluded.
Real Property for Sale	Non exempt real property which is up for sale is excluded as long as owners verify that they are making reasonable efforts to sell it.
Automobiles	Automobiles of any value are excluded.
Equity value of Property	No limit is placed on the equity value of property used to produce goods for home consumption.
Life Estates	Life estates in real property are excluded when the owner does not

Name of resource type:	Description: retain the power to sell the real property.
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☐ The following less restrictive methodologies are used:

Name of methodology:	Description:
Resource spend-down	Resources may be spent-down to the applicable Resource Maximum if used for medical or maintenance expenses.
Resources at any time during the month	Vermont does not use the first moment of the first day of the month in counting resources. If the applicant(s) is under resources at any time during the month, Medicaid is granted for the entire month if all other eligibility criteria are met.
Resources of Couple	Resources of couple, where one member has been admitted to a long-term care facility are combined for 6 months if this is to the advantage of the couple.
Resources in account up to \$30,000	Resources set aside in a separate bank account in the name of the Medicaid beneficiary are exempt in an amount not to exceed \$30,000. The funds may only be spent on medical care, assistive technology devices or home modifications not covered by Medicare, private insurance or Medicaid. They must be found to be reasonable and necessary to assist an individual in achieving or maintaining independent living. Up to \$500 per month of these resources may be spent for medical care and assistive technology devices. A one time expenditure of up to \$7,500 of these resources may be spent for home modifications.

Individuals in Institutions Eligible under a Special Income Level

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

D. Income Standard Used

The income standard for this group is:

- ☒ 1. 300% of the SSI Federal Benefit Rate (FBR) for an individual
- ☐ 2. Other lower income level

Individuals in Institutions Eligible under a Special Income Level

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

E.Resource Standard Used

The resource standard for this group is the one used for the most closely-related cash assistance program.

Individuals in Institutions Eligible under a Special Income Level

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

F.Additional Information (optional)

Medicaid State Plan Eligibility

Eligibility Groups - Options for Coverage

Individuals Receiving Hospice

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS00040 | VT-22-0002

Individuals who would be eligible for Medicaid under institutional rules and who will receive hospice care.

Package Header

Package ID	VT2022MS00040	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
User-Entered			

The state operates the Individuals Receiving Hospice eligibility group in accordance with the following provisions:

A. Characteristics

Individuals qualifying under this eligibility group must meet the following criteria:

- Would be eligible for one or more of the following Medicaid eligibility groups if in a medical institution:
 - ☐ a. Individuals in Institutions Eligible under a Special Income Level
 - ☐ b. Age and Disability-related Poverty Level
 - ☐ c. Medically Needy Individuals
 - ☐ d. Individuals Eligible for but Not Receiving Cash Assistance
 - ☐ e. Other eligibility group(s):
- Are terminally ill; and
- Will receive hospice care pursuant to a voluntary election.

Individuals Receiving Hospice

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

B. Individuals Covered

1. The state covers all individuals who meet the characteristics described in section A.

- ☒ Yes
- ☐ No

Individuals Receiving Hospice

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

C. Financial Methodologies

The income and resource methodologies used for this group are those used to determine eligibility for a state plan group under which the individual would be eligible if in an institution.

Individuals Receiving Hospice

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

D. Income and Resource Standards

The income and resource standards used for this group are those used to determine eligibility for a state plan group under which the individual would be eligible if in an institution.

Individuals Receiving Hospice

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

E. Medical Assistance Provided

Benefits for this eligibility group are described in the benefits section of the state plan.

Individuals Receiving Hospice

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

F. Additional Information (optional)

Eligibility Groups - Options for Coverage

Work Incentives

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Individuals with a disability with income below 250% of the FPL, who would qualify for SSI except for earned income.

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
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Superseded SPA ID	VT-91-12		
	User-Entered		

The state covers the optional Work Incentives eligibility group in accordance with the following provisions:

A. Characteristics

Individuals qualifying under this eligibility group must meet the following criteria:

1. Have earned income.
2. Meet the SSI definition of disability, but for earned income.
3. Meet income and resource standards following a two-step process, which includes:
 - a. Step One - A comparison of family net income to 250% FPL; and
 - b. Step Two - A comparison of individual net income and resources to the SSI standards, excluding earned income.

Work Incentives

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

B. Step One Financial Methodologies and Income Test

1. Financial methodologies

a. SSI methodologies are used in calculating family income. Please refer as necessary to Non-MAGI Methodologies, completed by the state.

b. Less restrictive methodologies are used in calculating countable income.

☒ Yes

☐ No

The less restrictive income methodologies are:

☐ Income from household members is disregarded.

☐ Income of the spouse is disregarded.

Description: If married, disregard all income of the working disabled individual's spouse.

☐ A specified type of income is disregarded:

Name of income type:	Description:
Veteran's disability benefits	Disregard all veteran's disability benefits.
SSDI and retirement benefits converted from SSDI	Disregard all Social Security Disability Insurance benefits (SSDI), including, if applicable, Social Security retirement benefits automatically converted from SSDI.

2. Income Test

Family net income must be less than 250% FPL. Please refer as necessary to Non-MAGI Methodologies for the definition of family size.

Work Incentives

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS00040 | VT-22-0002

Package Header

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SPA ID VT-22-0002
Initial Submission Date 9/30/2022
Effective Date 7/1/2022

C. Step Two Financial Methodologies and Income/Resource Test

1. Financial methodologies

a. SSI methodologies are used in calculating income and resources, except that earned income is not counted. Please refer as necessary to Non-MAGI Methodologies, completed by the state.

b. Less restrictive methodologies are used in calculating countable income.

☒ Yes

☐ No

The less restrictive income methodologies are:

☐ General income disregard:

Name of disregard:	Description:
COLA Forecast	From January 1 until April 1, the Department will disregard the difference between its estimated Federal Poverty Levels (FPLs) and the currently approved FPLs as published in the Federal Register. Effective April 1, the Department will issue a second increase if the actual FPLs exceed its estimate. If the department's estimated FPLs issued January 1 are higher than the actual FPLs, the department will continue to disregard the difference between its estimated FPLs and the ones published in the Federal Register.

☐ Census Bureau wages are disregarded.

Description of disregard: Wages paid by the Census Bureau for temporary employment related to census activities are excluded as income for this eligibility group.

☐ A less restrictive methodology is used with respect to lump sum income:

☐ Specified methodology for the treatment of lump sums as income:

Name of methodology:	Description:
Lump Sum Receipt of Earnings	Lump sum receipt of earnings such as sale of crops or livestock are averaged over the six-month accounting period.

☐ A specified type of income is disregarded:

Name of income type:	Description:
Income of an ineligible spouse	Countable income of an ineligible spouse is added to the countable income of an eligible individual and compared, after deductions, to the

Name of income type:	Description: Medically Needy Income Level for two.
Cash Contributions or Gifts	Infrequent or irregular voluntary cash contributions or gifts are excluded.
Vermont Tax Credit	Any refundable credit against taxes made pursuant to Vermont's child tax credit (32 V.S.A. § 5830f) or pursuant to a similar tax credit enacted by the State and directed by state law to not be considered as countable income for benefit programs.
Workforce Recruitment & Retention Program	Any wages that are made pursuant to Vermont's Premium Pay for Workforce Recruitment and Retention Program enacted in Act 83 of 2021 or a similar workforce recruitment and retention program enacted in Vermont and directed by state law to not be considered as countable income in determining eligibility for benefit programs.

c. Less restrictive methodologies are used in calculating countable resources.

- ☒ Yes
☐ No

The less restrictive resource methodologies are:

☐ General resource disregard:

Name of disregard:	Description:
Savings from excluded income	Savings from excluded income are excluded.
Amount of resources in excess of the resource standard	An additional \$8,000 in resources is disregarded for individuals; \$12,000 for couples.

☐ The state uses a less restrictive methodology with respect to resources set aside for burial.

☐ Specified methodology for the treatment of resources set aside for burial:

Name of methodology:	Description:
Burial Funds	Separately identifiable burial funds designated for burial expenses, either singly or in combination, are exempt in an amount not to exceed \$10,000. The burial funds must be designated by the title of the fund or by sworn statement provided to the department. The burial funds in conjunction with the irrevocable burial trust referenced in Supplement 10 to Attachment 2.6-A, page 1, last paragraph, cannot exceed \$10,000 in total.

☐ A specified type of resource is disregarded:

Name of resource type:	Description:
Real Property	Real property is excluded if the income it produces is significant to meeting living expenses and consistent with its fair market value.
Savings from Excluded Income	Savings from excluded income are excluded.
Real Property for Sale	Non exempt real property which is up for sale is excluded as long as owners verify that they are making reasonable efforts to sell it.
Automobiles	Automobiles of any value are excluded.
Equity value of Property	No limit is placed on the equity value of property used to produce goods for home consumption.
Life Estates	Life estates in real property are excluded when the owner does not retain the power to sell the real property.
Annuities, promissory notes, and similar resources	Annuities, promissory notes, and similar resources that produce income are exempt resources if they would otherwise be countable by SSI as long as they meet the following criteria: (1) Annuities are not a countable resource if they: have no beneficiary other than an individual requesting Medicaid or his/her spouse; and provide for payments to applicants or their spouses, in equal intervals and equal amounts; and do not exceed the life expectancy of the applicants or their spouses, as determined by the department; and return to the beneficiary at least the amount used to establish the contract and any additional payments plus any earnings, as specified in the contract; and do not pay anyone other than the applicant, the applicant's spouse, even if the applicant or spouse dies before the payment period ends. The department will also consider an annuity to meet the requirements above, if the owner of the annuity elects to designate Vermont Medicaid as the primary beneficiary up to the amount of long-term care payments it made, and names a contingent beneficiary other than the applicant or spouse to receive any surplus after Vermont Medicaid is paid. (2) Promissory notes and similar resources that produce income are not a countable resource if: (a) they meet the requirements in subsection (1) above, or (b) the individual owned a nonnegotiable or nonassignable promissory note executed before September 1, 2005 and the individual or spouse can expect to receive the full fair

Name of resource type:	Description:
	market value of the resource within the expected lifetime of the individual or spouse, as determined by the department.
State Tax Credit	Any refundable credit against taxes made pursuant to Vermont's child tax credit (32 V.S.A. § 5830f) or pursuant to a similar tax credit enacted by the State and directed by state law to not be considered as countable resources for benefit programs.
Workforce Recruitment & Retention Program	Any wages that are made pursuant to Vermont's Premium Pay for Workforce Recruitment and Retention Program enacted in Act 83 of 2021 or a similar workforce recruitment and retention program enacted in Vermont and directed by state law to not be considered as countable resources in determining eligibility for benefit programs.

☐ The following less restrictive methodologies are used:

Name of methodology:	Description:
Resource spend-down	Resources may be spent-down to the applicable Resource Maximum if used for medical or maintenance expenses.
Resources at any time during the month	Vermont does not use the first moment of the first day of the month in counting resources. If the applicant(s) is under resources at any time during the month, Medicaid is granted for the entire month if all other eligibility criteria are met.
Resources of Couple	Resources of couple, where one member has been admitted to a long-term care facility are combined for 6 months if this is to the advantage of the couple.
Resources in account up to \$30,000	Resources set aside in a separate bank account in the name of the Medicaid beneficiary are exempt in an amount not to exceed \$30,000. The funds may only be spent on medical care, assistive technology devices or home modifications not covered by Medicare, private insurance or Medicaid. They must be found to be reasonable and necessary to assist an individual in achieving or maintaining independent living. Up to \$500 per month of these resources may be spent for medical care and assistive technology devices. A one time expenditure of up to \$7,500 of these resources may be spent for home modifications.

For individuals who pass Step One, in Step Two, the individual's unearned income (plus deemed income, if appropriate) must be less than one of the following income standards:

- ☒ a. The SSI income standard.
- ☐ b. The income standard of the state supplement program.

3. Resource Test

The individual's resources must be less than the SSI resource standard.

Work Incentives

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

D. Premiums and Cost Sharing

Requirements for premiums and cost sharing for this group are found in the premium and cost sharing sections of the state plan.

Work Incentives

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

E. Additional Information (optional)

Medicaid State Plan Eligibility

Eligibility Groups - Medically Needy

Protected Medically Needy Individuals Who Were Eligible in 1973

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Individuals who were eligible as medically needy in 1973 based on blindness or disability, and who have been continuously eligible since that time.

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
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Superseded SPA ID	VT-91-12		
	User-Entered		

The state operates the Protected Medically Needy Individuals Who Were Eligible in 1973 eligibility group in accordance with the following provisions:

A. Characteristics

Individuals qualifying under this eligibility group must meet the following criteria:

1. Were eligible as medically needy in December 1973 on the basis of the blindness or disability criteria of the AB, APTD, or AABD plan.
2. For each consecutive month after December 1973, continue to meet:
 - a. Those blindness or disability criteria; and
 - b. The eligibility requirements for the medically needy under the December 1973 plan.
3. Meet all current requirements as medically needy, except for the blindness or disability criteria.

Protected Medically Needy Individuals Who Were Eligible in 1973

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

B. Additional Information (optional)

Protected Medically Needy Individuals Who Were Eligible in 1973

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

Medicaid State Plan Eligibility

Eligibility Groups - Medically Needy

Medically Needy Populations Based on Age, Blindness or Disability

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Individuals who are age 65 or older or who have blindness or a disability who do not qualify as categorically needy.

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
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	User-Entered		

The state covers the optional Medically Needy Populations Based on Age, Blindness or Disability eligibility group in accordance with the following provisions:

A. Characteristics

Individuals qualifying under this eligibility group must meet the following criteria:

1.Meet at least one of the following:

- Are age 65 or older;
- Have blindness; or
- Have a disability.

2. Are not otherwise eligible for categorically needy coverage under the state plan.

3. Have income at or below the medically needy income level and resources at or below the medically needy resource level.

Medically Needy Populations Based on Age, Blindness or Disability

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

B. Individuals Covered

The state covers the following populations:

- ☐ 1. Individuals age 65 or older
- ☐ 2. Individuals with blindness
- ☐ 3. Individuals who have a disability

Medically Needy Populations Based on Age, Blindness or Disability

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS00040 | VT-22-0002

Package Header

Package ID	VT2022MS00040	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

C. Financial Methodologies

1. The state uses the same financial methodology for all individuals covered.

☒ Yes

☐ No

2. The financial methodology used is:

a. SSI methodologies. Please refer as necessary to Non-MAGI Methodologies, completed by the state.

b. Less restrictive methodologies are used in calculating countable income.

☒ Yes ☐ No

The less restrictive income methodologies are:

☐ General income disregard:

Name of disregard:	Description:
COLA Forecast	From January 1 until April 1, the Department will disregard the difference between its estimated Federal Poverty Levels (FPLs) and the currently approved FPLs as published in the Federal Register. Effective April 1, the Department will issue a second increase if the actual FPLs exceed its estimate. If the department's estimated FPLs issued January 1 are higher than the actual FPLs, the department will continue to disregard the difference between its estimated FPLs and the ones published in the Federal Register.

☐ Census Bureau wages are disregarded.

Description of disregard: Wages paid by the Census Bureau for temporary employment related to census activities are excluded as income

for this
eligibility
group.

☐ A less restrictive methodology is used with respect to lump sum income:

☐ Specified methodology for the treatment of lump sums as income:

Name of methodology:	Description:
Lump Sum Receipt of Earnings	Lump sum receipt of earnings such as sale of crops or livestock are averaged over the six-month accounting period.

☐ A specified type of income is disregarded:

Name of income type:	Description:
Income of an ineligible spouse	Countable income of an ineligible spouse is added to the countable income of an eligible individual and compared, after deductions, to the Medically Needy Income Level for two.
Cash Contributions or Gifts	Infrequent or irregular voluntary cash contributions or gifts are excluded.
Vermont Tax Credit	Any refundable credit against taxes made pursuant to Vermont's child tax credit (32 V.S.A. § 5830f) or pursuant to a similar tax credit enacted by the State and directed by state law to not be considered as countable income for benefit programs.
Workforce Recruitment & Retention Program	Any wages that are made pursuant to Vermont's Premium Pay for Workforce Recruitment and Retention Program enacted in Act 83 of 2021 or a similar workforce recruitment and retention program enacted in Vermont and directed in state law to not be considered as countable income in determining

Name of income type:	Description: eligibility for benefit programs.
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☐ The following less restrictive methodologies are used:

Name of methodology:	Description:
Medically Needy CPI-U	For all medically needy individuals, disregard income in the amount of the difference between the percentage increase in the CPI-U (between July 16, 1996 and September of the last month in the most recently completed FFY) and the MNIL in effect on July 16, 1996.

c. Less restrictive methodologies are used in calculating countable resources.

☒ Yes ☐ No

The less restrictive resource methodologies are:

☐ The state uses a less restrictive methodology with respect to resources set aside for burial.

☐ Specified methodology for the treatment of resources set aside for burial:

Name of methodology:	Description:
Burial Funds	Separately identifiable burial funds designated for burial expenses, either singly or in combination, are exempt in an amount not to exceed \$10,000. The burial funds must be designated by the title of the fund or by sworn statement provided to the department. The burial funds in conjunction with the irrevocable burial trust referenced in Supplement 10 to Attachment 2.6-A, page 1, last paragraph, cannot exceed \$10,000 in total.

☐ A specified type of resource is disregarded:

Name of resource type:	Description:
Equity value of Property	No limit is placed on the equity value of property used to produce goods for home consumption.
Life Estates	Life estates in real property are excluded when the owner does not retain the power to sell the real property.
Annuities, promissory notes, and similar resources	Annuities, promissory notes, and similar resources that produce income are exempt resources if they would otherwise be countable by SSI as long as they meet the following criteria: (1) Annuities are not a countable resource if they: have no beneficiary other than an individual requesting Medicaid or his/her spouse; and provide for payments to applicants or their spouses, in equal intervals and equal amounts; and do not exceed the life expectancy of the applicants or their spouses, as determined by the department; and return to the beneficiary at least the amount used to establish the contract and any additional payments plus any earnings, as specified in the contract; and do not pay anyone other than the applicant, the applicant's spouse, even if the applicant or spouse dies before the payment period ends. The department will also consider an annuity to meet the requirements above, if the owner of the annuity elects to designate Vermont Medicaid as the primary beneficiary up to the amount of long-term care payments it made,

Name of resource type:	Description:
	and names a contingent beneficiary other than the applicant or spouse to receive any surplus after Vermont Medicaid is paid. (2) Promissory notes and similar resources that produce income are not a countable resource if: (a) they meet the requirements in subsection (1) above, or (b) the individual owned a nonnegotiable or nonassignable promissory note executed before September 1, 2005 and the individual or spouse can expect to receive the full fair market value of the resource within the expected lifetime of the individual or spouse, as determined by the department.
State Tax Credit	Any refundable credit against taxes made pursuant to Vermont's child tax credit (32 V.S.A. § 5830f) or pursuant to a similar tax credit enacted by the State and directed by state law to not be considered as countable resources for benefit programs.
Workforce Recruitment & Retention Program	Any wages that are made pursuant to Vermont's Premium Pay for Workforce Recruitment and Retention Program enacted in Act 83 of 2021 or a similar workforce recruitment and retention program enacted in Vermont and directed by state law to not be considered as countable resources in determining eligibility for benefit programs.
Real Property	Real property is excluded if the income it produces is significant to

Name of resource type:	Description: meeting living expenses and consistent with its fair market value.
Savings from Excluded Income	Savings from excluded income are excluded.
Real Property for Sale	Non exempt real property which is up for sale is excluded as long as owners verify that they are making reasonable efforts to sell it.
Automobiles	Automobiles of any value are excluded.

☐ The following less restrictive methodologies are used:

Name of methodology:	Description:
Resource spend-down	Resources may be spent-down to the applicable Resource Maximum if used for medical or maintenance expenses.
Resources at any time during the month	Vermont does not use the first moment of the first day of the month in counting resources. If the applicant(s) is under resources at any time during the month, Medicaid is granted for the entire month if all other eligibility criteria are met.
Resources of Couple	Resources of couple, where one member has been admitted to a long-term care facility are combined for 6 months if this is to the advantage of the couple.
Resources in account up to \$30,000	Resources set aside in a separate bank account in the name of the Medicaid beneficiary are exempt in an amount not to exceed \$30,000. The funds may only be spent on medical care, assistive technology devices or home modifications not covered by

Name of methodology:

Description:

Medicare, private insurance or Medicaid. They must be found to be reasonable and necessary to assist an individual in achieving or maintaining independent living. Up to \$500 per month of these resources may be spent for medical care and assistive technology devices. A one time expenditure of up to \$7,500 of these resources may be spent for home modifications.

Medically Needy Populations Based on Age, Blindness or Disability

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

Package ID	VT2022MS0004O	SPA ID	VT-22-0002
Submission Type	Official	Initial Submission Date	9/30/2022
Approval Date	12/20/2022	Effective Date	7/1/2022
Superseded SPA ID	VT-91-12		
	User-Entered		

D. Income Standard Used

The income standard used for this group is described in the Medically Needy Income Level RU.

Medically Needy Populations Based on Age, Blindness or Disability

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

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	User-Entered		

E. Resource Standard Used

The resource standard used for this group is described in the Medically Needy Resource Level RU.

Medically Needy Populations Based on Age, Blindness or Disability

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

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	User-Entered		

F. Spenddown

The state allows individuals to deduct incurred medical and remedial expenses (spend down) to become eligible under this group. Spenddown is defined in the Handling of Excess Income (Spenddown) RU.

Medically Needy Populations Based on Age, Blindness or Disability

MEDICAID | Medicaid State Plan | Eligibility | VT2022MS0004O | VT-22-0002

Package Header

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G. Additional Information (optional)

PRA Disclosure Statement: Centers for Medicare & Medicaid Services (CMS) collects this mandatory information in accordance with (42 U.S.C. 1396a) and (42 CFR 430.12); which sets forth the authority for the submittal and collection of state plans and plan amendment information in a format defined by CMS for the purpose of improving the state application and federal review processes, improve federal program management of Medicaid programs and Children's Health Insurance Program, and to standardize Medicaid program data which covers basic requirements, and individualized content that reflects the characteristics of the particular state's program. The information will be used to monitor and analyze performance metrics related to the Medicaid and Children's Health Insurance Program in efforts to boost program integrity efforts, improve performance and accountability across the programs. Under the Privacy Act of 1974 any personally identifying information obtained will be kept private to the extent of the law. According to the Paperwork Reduction Act of 1995, no persons are required to respond to a collection of information unless it displays a valid OMB control number. The valid OMB control number for this information collection is 0938-1188. The time required to complete this information collection is estimated to range from 1 hour to 80 hours per response (see below), including the time to review instructions, search existing data resources, gather the data needed, and complete and review the information collection. If you have comments concerning the accuracy of the time estimate(s) or suggestions for improving this form, please write to: CMS, 7500 Security Boulevard, Attn: PRA Reports Clearance Officer, Mail Stop C4-26-05, Baltimore, Maryland 21244-1850.

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